

TERMS AND CONDITIONS OF HIRE

DEFINITIONS

Hirer: The person named as such overleaf.

Driver: The Hirer and/or other person named as such overleaf or any other person specifically approved by the Lessor to drive the vehicle during the duration of this agreement.

Excess Amount: The sum specified overleaf as the excess amount.

Vehicle: The Original vehicle described overleaf or any replacement vehicle.

Accessories: The spare wheel, tools or any other items with which the vehicle is supplied and any replacements thereof.

Rental Period: The period from the date and time out stated overleaf until the re-delivery of the vehicle into the physical custody of the Lessor.

Rental Charges: The hire charges for the rental period calculated in accordance with the Lessor's current tariff.

Current Tariff: The Lessor's tariff current at the commencement of hire.

Insurance Policy: The Lessor's policy of insurance on the vehicle a copy of which is available for inspection at the Rental location.

SPECIAL CASE HIRE PAYMENTS

Where the hire is consequent upon the Hirer's own vehicle being unroadworthy as a result of a road traffic accident and a claim for damages is being or is to be pursued against the third party alleged to be liable for the accident, the hirer agrees to pay the Lessor by one single instalment/payment either at the conclusion of the Claim or within a period not exceeding 12 months beginning with the date of this agreement, whichever is the earlier:

- All rental Charges
- Any Value Added Tax, local or other taxes payable in respect of the above
- The Period of hire, the subject of this agreement shall not exceed 89 days.

HIRER AGREEMENTS & CLAIMS

1. The Lessor has been authorised by the Hirer to pursue a claim in the Hirer's name against the third party for the Rental Charges and other Hirer's uninsured losses.
2. If necessary the Lessor's solicitors can pursue such third party claim in the relevant Court and any appeal and the Hirer will co-operate fully.
3. The Daily/Weekly rental Charges were written to The Agreement before the Agreement was signed.
4. The Hirer authorises the third party insurance company to make monies/cheques payable to the Lessor for any rental/Storage/Recovery/Disbursement.
5. The Hirer confirms that the nature and happening of the road traffic accident as detailed in the documentation supplied to the Lessor is true and correct.

HIRER ACKNOWLEDGMENT

- A. The vehicle is fit for this purpose and undertakes to return it and its accessories to the place and on the date due back specified overleaf or sooner if requested.
- B. He has received the vehicle free from apparent defects or damage (except as indicated on the check sheet).
- C. The Lessor has no liability in respect of any injury, loss or damage arising from the use of the vehicle, nor for indirect loss or unforeseeable damage.
- D. The Lessor shall not be liable for damages arising from defects or mechanical failures not attributable to breach of warranty or reasonable care.
- E. During the rental period, the Hirer shall keep the vehicle and all its accessories in his or any approved driver's possession and free from legal process or lien.

USE RESTRICTIONS

The Hirer and any driver shall ensure that the vehicle will not be used:

- For hire or reward, except where the vehicle is a plated taxi or private hire vehicle.
- For racing, pacemaking, rallying, speed testing, driving tuition or towing objects.
- In any manner which might render void the insurance policy or for illegal purposes.

By any person who: Is not licensed; Under the influence of drink or drugs; Has given a fictitious name/ age; Has not been approved; Has undisclosed convictions; Or travels outside England, Wales or Scotland without consent.

AGE & COSTS

The standard age requirement is between 25 and 65 years. Hirers aged 18-24 or 66-75 may be eligible only with express consent and comprehensive insurance. Hirer is responsible for insurance costs. In the event of loss or damage, Hirer is personally liable for Lessor's losses.

FINAL PAYMENTS

The Hirers agree to pay at the conclusion of the hire period:

1. All Rental Charges (subject to Clause 1).
2. Any appropriate Excess Waiver or any Refuelling and miscellaneous charges.
3. The excess amount in respect of each incident resulting in damage/loss.
4. All fines and court costs incurred (except where caused through the fault of the Lessor).

Compensation: Hirer shall compensate Lessor in full for any loss from damage/theft including loss of revenue, regardless of insurance status.

DUTIES & OBLIGATIONS

The Hirer and any driver shall:

- Compliance with insurance policy terms.
- Inform Lessor immediately of faults or damage.
- Permit acts for enforcing rights/remedies.
- Indemnify Lessor against loss from any breach.
- Ensure payload and axle weights are not exceeded.

The Hirer and any driver shall NOT: Incur repair costs without consent; Be the agent/servant of Lessor; Claim for personal property loss (unless Lessor negligent).

TERMINATION & ENTIRETY

Even if an excess waiver fee is paid, Hirer is responsible for excess if loss arises from negligence. Failure to comply requires immediate vehicle return. This agreement contains the entire agreement between the parties and supersedes all previous understandings.